This form recommended and approved for, but not restricted to use by, the members of the Pennsylvania Association of Realtors® (PAR).

PROPERTY _____

SELLER _____

INFORMATION REGARDING THE REAL ESTATE SELLER DISCLOSURE LAW

The Real Estate Seller Disclosure Law (68 P.S. §7301, et seq.) requires that before an agreement of sale is signed, the seller in a residential real estate transfer must disclose all known **material defects** about the property being sold that are not readily observable. A **material defect** is a problem with a residential real property or any portion of it that would have a significant adverse impact on the value of the property or that involves an unreasonable risk to people on the property. The fact that a structural element, system or subsystem is at or beyond the end of its normal useful life is not by itself a material defect.

This property disclosure statement ("Statement") includes disclosures beyond the basic requirements of the Law and is designed to assist Seller in complying with disclosure requirements and to assist Buyer in evaluating the property being considered. Sellers who wish to see or use the basic disclosure form can find the form on the website of the Pennsylvania State Real Estate Commission. Neither this Statement nor the basic disclosure form limits Seller's obligation to disclose a material defect.

This Statement discloses Seller's knowledge of the condition of the Property as of the date signed by Seller and **is not a substitute for any inspections or warranties** that Buyer may wish to obtain. **This Statement is not a warranty of any kind by Seller or a warranty or representation by any listing real estate broker, any selling real estate broker, or their licensees.** Buyer is encouraged to address concerns about the condition of the Property that may not be included in this Statement.

The Law provides exceptions (listed below) where a property disclosure statement does not have to be completed. All other sellers are obligated to complete a property disclosure statement, even if they do not occupy or have never occupied the Property.

1. Transfers by a fiduciary during the administration of a decedent estate, guardianship, conservatorship or trust.
2. Transfers as a result of a court order.
3. Transfers to a mortgage lender that results from a buyer's default and subsequent foreclosure sales that result from default.
4. Transfers from a co-owner to one or more other co-owners.
5. Transfers made to a spouse or direct descendant.
6. Transfers between spouses as a result of divorce, legal separation or property settlement.
7. Transfers by a corporation, partnership or other association to its shareholders, partners or other equity owners as part of a plan of liquidation.
8. Transfers of a property to be demolished or converted to non-residential use.
9. Transfers of unimproved real property.
10. Transfers of new construction that has never been occupied and:
    a. The buyer has received a one-year warranty covering the construction;
    b. The building has been inspected for compliance with the applicable building code or, if none, a nationally recognized model building code; and
    c. A certificate of occupancy or a certificate of code compliance has been issued for the dwelling.

COMMON LAW DUTY TO DISCLOSE

Although the provisions of the Real Estate Seller Disclosure Law exclude some transfers from the requirement of completing a disclosure statement, the Law does not excuse the seller's common law duty to disclose any known material defect(s) of the Property in order to avoid fraud, misrepresentation or deceit in the transaction. **This duty continues until the date of settlement.**

EXECUTOR, ADMINISTRATOR, TRUSTEE SIGNATURE BLOCK

According to the provisions of the Real Estate Seller Disclosure Law, the undersigned executor, administrator or trustee is not required to fill out a Seller's Property Disclosure Statement. **The executor, administrator or trustee, must, however, disclose any known material defect(s) of the Property.**

_____ DATE _____

Pennsylvania Association of Realtors®

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rev. 3/21; rel. 7/21

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Check yes, no, unknown (unk) or not applicable (N/A) for each question. Be sure to check N/A when a question does not apply to the Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

1. SELLER'S EXPERTISE

	Yes	No	Unk	N/A
(A) Does Seller possess expertise in contracting, engineering, architecture, environmental assessment or other areas related to the construction and conditions of the Property and its improvements? A				
(B) Is Seller the landlord for the Property? B				
(C) Is Seller a real estate licensee? C				

Explain any "yes" answers in Section 1: _____

_____

2. OWNERSHIP/OCCUPANCY

	Yes	No	Unk	N/A
(A) **Occupancy**				
1. When was the Property most recently occupied? A1				
2. By how many people? A2				
3. Was Seller the most recent occupant? A3				
4. If "no," when did Seller most recently occupy the Property? A4				
(B) **Role of Individual Completing This Disclosure.** Is the individual completing this form:				
1. The owner B1				
2. The executor or administrator B2				
3. The trustee B3				
4. An individual holding power of attorney B4				
(C) When was the Property acquired? C				

(D) List any animals that have lived in the residence(s) or other structures during your ownership: ____

_____

Explain Section 2 (if needed): _____

_____

3. CONDOMINIUMS/PLANNED COMMUNITIES/HOMEOWNERS ASSOCIATIONS

(A) Disclosures for condominiums and cooperatives are limited to Seller's particular unit(s). Disclosures regarding common areas or facilities are not required by the Real Estate Seller Disclosure Law.

	Yes	No	Unk	N/A
(B) **Type.** Is the Property part of a(n):				
1. Condominium B1				
2. Homeowners association or planned community B2				
3. Cooperative B3				
4. Other type of association or community B4				
(C) If "yes," how much are the fees? $_____ , paid (☐ Monthly)(☐ Quarterly)(☐ Yearly) C				
(D) If "yes," are there any community services or systems that the association or community is responsible for supporting or maintaining? Explain: D				
(E) If "yes," provide the following information:				
1. Community Name E1				
2. Contact E2				
3. Mailing Address E3				
4. Telephone Number E4				
(F) How much is the capital contribution/initiation fee(s)? $ F				

Notice to Buyer: *A buyer of a resale unit in a condominium, cooperative, or planned community must receive a copy of the declaration (other than the plats and plans), the by-laws, the rules or regulations, and a certificate of resale issued by the association, condominium, cooperative, or planned community. Buyers may be responsible for capital contributions, initiation fees or similar one-time fees in addition to regular maintenance fees. The buyer will have the option of canceling the agreement with the return of all deposit monies until the certificate has been provided to the buyer and for five days thereafter or until conveyance, whichever occurs first.*

4. ROOFS AND ATTIC

	Yes	No	Unk	N/A
(A) **Installation**				
1. When was or were the roof or roofs installed? A1				
2. Do you have documentation (invoice, work order, warranty, etc.)? A2				
(B) **Repair**				
1. Was the roof or roofs or any portion of it or them replaced or repaired during your ownership? B1				
2. If it or they were replaced or repaired, were any existing roofing materials removed? B2				
(C) **Issues**				
1. Has the roof or roofs ever leaked during your ownership? C1				
2. Have there been any other leaks or moisture problems in the attic? C2				
3. Are you aware of any past or present problems with the roof(s), attic, gutters, flashing or downspouts? C3				

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Explain any "yes" answers in Section 4. Include the location and extent of any problem(s) and any repair or remediation efforts, the name of the person or company who did the repairs and the date they were done: _____

5. BASEMENTS AND CRAWL SPACES

		Yes	No	Unk	N/A
(A) **Sump Pump**					
1. Does the Property have a sump pit? If "yes," how many? _____	A1				
2. Does the Property have a sump pump? If "yes," how many? _____	A2				
3. If it has a sump pump, has it ever run?	A3				
4 If it has a sump pump, is the sump pump in working order?	A4				
(B) **Water Infiltration**					
1. Are you aware of any past or present water leakage, accumulation, or dampness within the basement or crawl space?	B1				
2. Do you know of any repairs or other attempts to control any water or dampness problem in the basement or crawl space?	B2				
3. Are the downspouts or gutters connected to a public sewer system?	B3				

Explain any "yes" answers in Section 5. Include the location and extent of any problem(s) and any repair or remediation efforts, the name of the person or company who did the repairs and the date they were done: _____

6. TERMITES/WOOD-DESTROYING INSECTS, DRYROT, PESTS

		Yes	No	Unk	N/A
(A) **Status**					
1. Are you aware of past or present dryrot, termites/wood-destroying insects or other pests on the Property?	A1				
2. Are you aware of any damage caused by dryrot, termites/wood-destroying insects or other pests?	A2				
(B) **Treatment**					
1. Is the Property currently under contract by a licensed pest control company?	B1				
2. Are you aware of any termite/pest control reports or treatments for the Property?	B2				

Explain any "yes" answers in Section 6. Include the name of any service/treatment provider, if applicable: _____

7. STRUCTURAL ITEMS

		Yes	No	Unk	N/A
(A) Are you aware of any past or present movement, shifting, deterioration, or other problems with walls, foundations, or other structural components?	A				
(B) Are you aware of any past or present problems with driveways, walkways, patios or retaining walls on the Property?	B				
(C) Are you aware of any past or present water infiltration in the house or other structures, other than the roof(s), basement or crawl space(s)?	C				
(D) **Stucco and Exterior Synthetic Finishing Systems**					
1. Is any part of the Property constructed with stucco or an Exterior Insulating Finishing System (EIFS) such as Dryvit or synthetic stucco, synthetic brick or synthetic stone?	D1				
2. If "yes," indicate type(s) and location(s) _____	D2				
3. If "yes," provide date(s) installed _____	D3				
(E) Are you aware of any fire, storm/weather-related, water, hail or ice damage to the Property?	E				
(F) Are you aware of any defects (including stains) in flooring or floor coverings?	F				

Explain any "yes" answers in Section 7. Include the location and extent of any problem(s) and any repair or remediation efforts, the name of the person or company who did the repairs and the date the work was done: _____

8. ADDITIONS/ALTERATIONS

		Yes	No	Unk	N/A
(A) Have any additions, structural changes or other alterations (including remodeling) been made to the Property during your ownership? Itemize and date all additions/alterations below.	A				

Addition, structural change or alteration (continued on following page)	Approximate date of work	Were permits obtained? (Yes/No/Unk/NA)	Final inspections/ approvals obtained? (Yes/No/Unk/NA)

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Addition, structural change or alteration	Approximate date of work	Were permits obtained? (Yes/No/Unk/NA)	Final inspections/ approvals obtained? (Yes/No/Unk/NA)

☐ **A sheet describing other additions and alterations is attached.**

	Yes	No	Unk	N/A
(B) Are you aware of any private or public architectural review control of the Property other than zoning codes? If "yes," explain: _____ B				

Note to Buyer: *The PA Construction Code Act, 35 P.S. §7210 et seq. (effective 2004), and local codes establish standards for building and altering properties. Buyers should check with the municipality to determine if permits and/or approvals were necessary for disclosed work and if so, whether they were obtained. Where required permits were not obtained, the municipality might require the current owner to upgrade or remove changes made by the prior owners. Buyers can have the Property inspected by an expert in codes compliance to determine if issues exist. Expanded title insurance policies may be available for Buyers to cover the risk of work done to the Property by previous owners without a permit or approval.*

Note to Buyer: *According to the PA Stormwater Management Act, each municipality must enact a Storm Water Management Plan for drainage control and flood reduction. The municipality where the Property is located may impose restrictions on impervious or semi-pervious surfaces added to the Property. Buyers should contact the local office charged with overseeing the Stormwater Management Plan to determine if the prior addition of impervious or semi-pervious areas, such as walkways, decks, and swimming pools, might affect your ability to make future changes.*

9. WATER SUPPLY

		Yes	No	Unk	N/A
(A) **Source.** Is the source of your drinking water (check all that apply):					
1. Public	A1				
2. A well on the Property	A2				
3. Community water	A3				
4. A holding tank	A4				
5. A cistern	A5				
6. A spring	A6				
7. Other _____	A7				
8. If no water service, explain: _____					
(B) **General**					
1. When was the water supply last tested? _____	B1				
Test results: _____					
2. Is the water system shared?	B2				
If "yes," is there a written agreement?	B3				
4. Do you have a softener, filter or other conditioning system?	B4				
5. Is the softener, filter or other treatment system leased? From whom? _____	B5				
6. If your drinking water source is not public, is the pumping system in working order? If "no," explain: _____	B6				
(C) **Bypass Valve** (for properties with multiple sources of water)					
1. Does your water source have a bypass valve?	C1				
2. If "yes," is the bypass valve working?	C2				
(D) **Well**					
1. Has your well ever run dry?	D1				
2. Depth of well _____	D2				
3. Gallons per minute: _____ , measured on (date) _____	D3				
4. Is there a well that is used for something other than the primary source of drinking water?	D4				
If "yes," explain _____					
5. If there is an unused well, is it capped?	D5				

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		Yes	No	Unk	N/A
(E) **Issues**					
1. Are you aware of any leaks or other problems, past or present, relating to the water supply, pumping system and related items?	E1				
2. Have you ever had a problem with your water supply?	E2				

Explain any problem(s) with your water supply. Include the location and extent of any problem(s) and any repair or remediation efforts, the name of the person or company who did the repairs and the date the work was done: _____

_____

10. SEWAGE SYSTEM

		Yes	No	Unk	N/A
(A) **General**					
1. Is the Property served by a sewage system (public, private or community)?	A1				
2. If "no," is it due to unavailability or permit limitations?	A2				
3. When was the sewage system installed (or date of connection, if public)? _____	A3				
4. Name of current service provider, if any: _____	A4				
(B) **Type** Is your Property served by:					
1. Public	B1				
2. Community (non-public)	B2				
3. An individual on-lot sewage disposal system	B3				
4. Other, explain: _____	B4				
(C) **Individual On-lot Sewage Disposal System.** (check all that apply):					
1. Is your sewage system within 100 feet of a well?	C1				
2. Is your sewage system subject to a ten-acre permit exemption?	C2				
3. Does your sewage system include a holding tank?	C3				
4. Does your sewage system include a septic tank?	C4				
5. Does your sewage system include a drainfield?	C5				
6. Does your sewage system include a sandmound?	C6				
7. Does your sewage system include a cesspool?	C7				
8. Is your sewage system shared?	C8				
9. Is your sewage system any other type? Explain: _____	C9				
10. Is your sewage system supported by a backup or alternate system?	C10				
(D) **Tanks and Service**					
1. Are there any metal/steel septic tanks on the Property?	D1				
2. Are there any cement/concrete septic tanks on the Property?	D2				
3. Are there any fiberglass septic tanks on the Property?	D3				
4. Are there any other types of septic tanks on the Property? Explain _____	D4				
5. Where are the septic tanks located? _____	D5				
6. When were the tanks last pumped and by whom? _____ _____	D6				
(E) **Abandoned Individual On-lot Sewage Disposal Systems and Septic**					
1. Are you aware of any abandoned septic systems or cesspools on the Property?	E1				
2. If "yes," have these systems, tanks or cesspools been closed in accordance with the municipality's ordinance?	E2				
(F) **Sewage Pumps**					
1. Are there any sewage pumps located on the Property?	F1				
2. If "yes," where are they located? _____	F2				
3. What type(s) of pump(s)? _____	F3				
4. Are pump(s) in working order?	F4				
5. Who is responsible for maintenance of sewage pumps? _____ _____	F5				
(G) **Issues**					
1. How often is the on-lot sewage disposal system serviced? _____	G1				
2. When was the on-lot sewage disposal system last serviced and by whom? _____ _____	G2				
3. Is any waste water piping not connected to the septic/sewer system?	G3				
4. Are you aware of any past or present leaks, backups, or other problems relating to the sewage system and related items?	G4				

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Explain any "yes" answers in Section 10. Include the location and extent of any problem(s) and any repair or remediation efforts, the name of the person or company who did the repairs and the date the work was done: _____

_____

11. PLUMBING SYSTEM

		Yes	No	Unk	N/A
(A) **Material(s).** Are the plumbing materials (check all that apply):					
1. Copper	A1				
2. Galvanized	A2				
3. Lead	A3				
4. PVC	A4				
5. Polybutylene pipe (PB)	A5				
6. Cross-linked polyethyline (PEX)	A6				
7. Other _____	A7				
(B) Are you aware of any past or present problems with any of your plumbing fixtures (e.g., including but not limited to: kitchen, laundry, or bathroom fixtures; wet bars; exterior faucets; etc.)?	B				

If "yes," explain: _____

_____

12. DOMESTIC WATER HEATING

		Yes	No	Unk	N/A
(A) **Type(s).** Is your water heating (check all that apply):					
1. Electric	A1				
2. Natural gas	A2				
3. Fuel oil	A3				
4. Propane	A4				
If "yes," is the tank owned by Seller?					
5. Solar	A5				
If "yes," is the system owned by Seller?					
6. Geothermal	A6				
7. Other _____	A7				
(B) **System(s)**					
1. How many water heaters are there? _____	B1				
Tanks _____ Tankless _____					
2. When were they installed? _____	B2				
3. Is your water heater a summer/winter hook-up (integral system, hot water from the boiler, etc.)?	B3				
(C) Are you aware of any problems with any water heater or related equipment?	C				

If "yes," explain: _____

_____

13. HEATING SYSTEM

		Yes	No	Unk	N/A
(A) **Fuel Type(s).** Is your heating source (check all that apply):					
1. Electric	A1				
2. Natural gas	A2				
3. Fuel oil	A3				
4. Propane	A4				
If "yes," is the tank owned by Seller?					
5. Geothermal	A5				
6. Coal	A6				
7. Wood	A7				
8. Solar shingles or panels	A8				
If "yes," is the system owned by Seller?					
9. Other: _____	A9				
(B) **System Type(s)** (check all that apply):					
1. Forced hot air	B1				
2. Hot water	B2				
3. Heat pump	B3				
4. Electric baseboard	B4				
5. Steam	B5				
6. Radiant flooring	B6				
7. Radiant ceiling	B7				

Check yes, no, unknown (unk) or not applicable (N/A) for each question. Be sure to check N/A when a question does not apply to the Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

		Yes	No	Unk	N/A
8. Pellet stove(s)	B8				
How many and location? _____					
9. Wood stove(s)	B9				
How many and location? _____					
10. Coal stove(s)	B10				
How many and location? _____					
11. Wall-mounted split system(s)	B11				
How many and location? _____					
12. Other: _____	B12				
13. If multiple systems, provide locations _____ _____	B13				
(C) **Status**					
1. Are there any areas of the house that are not heated?	C1				
If "yes," explain: _____					
2. How many heating zones are in the Property? _____	C2				
3. When was each heating system(s) or zone installed? _____	C3				
4. When was the heating system(s) last serviced? _____	C4				
5. Is there an additional and/or backup heating system? If "yes," explain: _____ _____	C5				
6. Is any part of the heating system subject to a lease, financing or other agreement?	C6				
If "yes," explain: _____					
(D) **Fireplaces and Chimneys**					
1. Are there any fireplaces? How many? _____	D1				
2. Are all fireplaces working?	D2				
3. Fireplace types (wood, gas, electric, etc.): _____	D3				
4. Was the fireplace(s) installed by a professional contractor or manufacturer's representative?	D4				
5. Are there any chimneys (from a fireplace, water heater or any other heating system)?	D5				
6. How many chimneys? _____	D6				
7. When were they last cleaned? _____	D7				
8. Are the chimneys working? If "no," explain: _____	D8				
(E) **Fuel Tanks**					
1. Are you aware of any heating fuel tank(s) on the Property?	E1				
2. Location(s), including underground tank(s): _____	E2				
3. If you do not own the tank(s), explain: _____	E3				
(F) **Are you aware of any problems or repairs needed regarding any item in Section 13? If "yes," explain:** _____	F				
14. AIR CONDITIONING SYSTEM					
(A) **Type(s).** Is the air conditioning (check all that apply):					
1. Central air	A1				
a. How many air conditioning zones are in the Property? _____	1a				
b. When was each system or zone installed? _____	1b				
c. When was each system last serviced? _____	1c				
2. Wall units	A2				
How many and the location? _____					
3. Window units	A3				
How many? _____					
4. Wall-mounted split units	A4				
How many and the location? _____					
5. Other _____	A5				
6. None	A6				
(B) Are there any areas of the house that are not air conditioned?	B				
If "yes," explain: _____					
(C) **Are you aware of any problems with any item in Section 14? If "yes," explain:** _____ _____	C				

Check yes, no, unknown (unk) or not applicable (N/A) for each question. Be sure to check N/A when a question does not apply to the Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

15. ELECTRICAL SYSTEM

		Yes	No	Unk	N/A
(A) **Type(s)**					
1. Does the electrical system have fuses?	A1				
2. Does the electrical system have circuit breakers?	A2				
3. Is the electrical system solar powered?	A3				
a. If "yes," is it entirely or partially solar powered? _____	3a				
b. If "yes," is any part of the system subject to a lease, financing or other agreement? If "yes," explain: _____	3b				
(B) What is the system amperage? _____	B				
(C) Are you aware of any knob and tube wiring in the Property?	C				
(D) Are you aware of any problems or repairs needed in the electrical system? If "yes," explain: _____	D				

16. OTHER EQUIPMENT AND APPLIANCES

(A) **THIS SECTION IS INTENDED TO IDENTIFY PROBLEMS OR REPAIRS** and must be completed for each item that will, or may, be included with the Property. The terms of the Agreement of Sale negotiated between Buyer and Seller will determine which items, if any, are included in the purchase of the Property. **THE FACT THAT AN ITEM IS LISTED DOES NOT MEAN IT IS INCLUDED IN THE AGREEMENT OF SALE.**

(B) Are you aware of any problems or repairs needed to any of the following:

Item	Yes	No	N/A		Item	Yes	No	N/A
A/C window units					Pool/spa heater			
Attic fan(s)					Range/oven			
Awnings					Refrigerator(s)			
Carbon monoxide detectors					Satellite dish			
Ceiling fans					Security alarm system			
Deck(s)					Smoke detectors			
Dishwasher					Sprinkler automatic timer			
Dryer					Stand-alone freezer			
Electric animal fence					Storage shed			
Electric garage door opener					Trash compactor			
Garage transmitters					Washer			
Garbage disposal					Whirlpool/tub			
In-ground lawn sprinklers					Other:			
Intercom					1.			
Interior fire sprinklers					2.			
Keyless entry					3.			
Microwave oven					4.			
Pool/spa accessories					5.			
Pool/spa cover					6.			

(C) Explain any "yes" answers in Section 16: _____

17. POOLS, SPAS AND HOT TUBS

		Yes	No	Unk	N/A
(A) Is there a swimming pool on the Property? If "yes,":	A				
1. Above-ground or in-ground? _____	A1				
2. Saltwater or chlorine? _____	A2				
3. If heated, what is the heat source? _____	A3				
4. Vinyl-lined, fiberglass or concrete-lined? _____	A4				
5. What is the depth of the swimming pool? _____	A5				
6. Are you aware of any problems with the swimming pool?	A6				
7. Are you aware of any problems with any of the swimming pool equipment (cover, filter, ladder, lighting, pump, etc.)?	A7				
(B) Is there a spa or hot tub on the Property?	B				
1. Are you aware of any problems with the spa or hot tub?	B1				
2. Are you aware of any problems with any of the spa or hot tub equipment (steps, lighting, jets, cover, etc.)?	B2				

(C) Explain any problems in Section 17: _____

Check yes, no, unknown (unk) or not applicable (N/A) for each question. Be sure to check N/A when a question does not apply to the Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

18. WINDOWS

		Yes	No	Unk	N/A
(A) Have any windows or skylights been replaced during your ownership of the Property?	A				
(B) Are you aware of any problems with the windows or skylights?	B				

Explain any "yes" answers in Section 18. Include the location and extent of any problem(s) and any repair, replacement or remediation efforts, the name of the person or company who did the repairs and the date the work was done: _____

_____

19. LAND/SOILS

(A) **Property**

		Yes	No	Unk	N/A
1. Are you aware of any fill or expansive soil on the Property?	A1				
2. Are you aware of any sliding, settling, earth movement, upheaval, subsidence, sinkholes or earth stability problems that have occurred on or affect the Property?	A2				
3. Are you aware of sewage sludge (other than commercially available fertilizer products) being spread on the Property?	A3				
4. Have you received written notice of sewage sludge being spread on an adjacent property?	A4				
5. Are you aware of any existing, past or proposed mining, strip-mining, or any other excavations on the Property?	A5				

Note to Buyer: *The Property may be subject to mine subsidence damage. Maps of the counties and mines where mine subsidence damage may occur and further information on mine subsidence insurance are available through* Department of Environmental Protection Mine Subsidence Insurance Fund, (800) 922-1678 or ra-epmsi@pa.gov.

(B) **Preferential Assessment and Development Rights**

Is the Property, or a portion of it, preferentially assessed for tax purposes, or subject to limited development rights under the:

		Yes	No	Unk	N/A
1. Farmland and Forest Land Assessment Act - 72 P.S.§5490.1, et seq. (Clean and Green Program)	B1				
2. Open Space Act - 16 P.S. §11941, et seq.	B2				
3. Agricultural Area Security Law - 3 P.S. §901, et seq. (Development Rights)	B3				
4. Any other law/program: _____	B4				

Note to Buyer: *Pennsylvania has enacted the Right to Farm Act (3 P.S. § 951-957) in an effort to limit the circumstances under which agricultural operations may be subject to nuisance suits or ordinances. Buyers are encouraged to investigate whether any agricultural operations covered by the Act operate in the vicinity of the Property.*

(C) **Property Rights**

Are you aware of the transfer, sale and/or lease of any of the following property rights (by you or a previous owner of the Property):

		Yes	No	Unk	N/A
1. Timber	C1				
2. Coal	C2				
3. Oil	C3				
4. Natural gas	C4				
5. Mineral or other rights (such as farming rights, hunting rights, quarrying rights) Explain:	C5				

_____

Note to Buyer: *Before entering into an agreement of sale, Buyer can investigate the status of these rights by, among other means, engaging legal counsel, obtaining a title examination of unlimited years and searching the official records in the county Office of the Recorder of Deeds, and elsewhere. Buyer is also advised to investigate the terms of any existing leases, as Buyer may be subject to terms of those leases.*

Explain any "yes" answers in Section 19: _____

_____

20. FLOODING, DRAINAGE AND BOUNDARIES

(A) Flooding/Drainage

		Yes	No	Unk	N/A
1. Is any part of this Property located in a wetlands area?	A1				
2. Is the Property, or any part of it, designated a Special Flood Hazard Area (SFHA)?	A2				
3. Do you maintain flood insurance on this Property?	A3				
4. Are you aware of any past or present drainage or flooding problems affecting the Property?	A4				
5. Are you aware of any drainage or flooding mitigation on the Property?	A5				
6. Are you aware of the presence on the Property of any man-made feature that temporarily or permanently conveys or manages storm water, including any basin, pond, ditch, drain, swale, culvert, pipe or other feature?	A6				
7. If "yes," are you responsible for maintaining or repairing that feature which conveys or manages storm water for the Property?	A7				

Check yes, no, unknown (unk) or not applicable (N/A) for each question. Be sure to check N/A when a question does not apply to the Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

Explain any "yes" answers in Section 20(A). Include dates, the location and extent of flooding and the condition of any man-made storm water management features: _____

_____

(B) **Boundaries**

		Yes	No	Unk	N/A
1. Are you aware of encroachments, boundary line disputes, or easements affecting the Property?	B1				
2. Is the Property accessed directly (without crossing any other property) by or from a public road?	B2				
3. Can the Property be accessed from a private road or lane?	B3				
a. If "yes," is there a written right of way, easement or maintenance agreement?	3a				
b. If "yes," has the right of way, easement or maintenance agreement been recorded?	3b				
4. Are you aware of any shared or common areas (driveways, bridges, docks, walls, etc.) or maintenance agreements?	B4				

Note to Buyer: *Most properties have easements running across them for utility services and other reasons. In many cases, the easements do not restrict the ordinary use of the property, and Seller may not be readily aware of them. Buyers may wish to determine the existence of easements and restrictions by examining the property and ordering an Abstract of Title or searching the records in the Office of the Recorder of Deeds for the county before entering into an agreement of sale.*

Explain any "yes" answers in Section 20(B): _____

_____

21. HAZARDOUS SUBSTANCES AND ENVIRONMENTAL ISSUES

(A) **Mold and Indoor Air Quality (other than radon)**

		Yes	No	Unk	N/A
1. Are you aware of any tests for mold, fungi, or indoor air quality in the Property?	A1				
2. Other than general household cleaning, have you taken any efforts to control or remediate mold or mold-like substances in the Property?	A2				

Note to Buyer: *Individuals may be affected differently, or not at all, by mold contamination. If mold contamination or indoor air quality is a concern, buyers are encouraged to engage the services of a qualified professional to do testing. Information on this issue is available from the United States Environmental Protection Agency and may be obtained by contacting IAQ INFO, P.O. Box 37133, Washington, D.C. 20013-7133, 1-800-438-4318.*

(B) **Radon**

		Yes	No	Unk	N/A
1. Are you aware of any tests for radon gas that have been performed in any buildings on the Property?	B1				
2. If "yes," provide test date and results _____	B2				
3. Are you aware of any radon removal system on the Property?	B3				

(C) **Lead Paint**

If the Property was constructed, or if construction began, before 1978, you must disclose any knowledge of, and records and reports about, lead-based paint on the Property on a separate disclosure form.

		Yes	No	Unk	N/A
1. Are you aware of any lead-based paint or lead-based paint hazards on the Property?	C1				
2. Are you aware of any reports or records regarding lead-based paint or lead-based paint hazards on the Property?	C2				

(D) **Tanks**

		Yes	No	Unk	N/A
1. Are you aware of any existing underground tanks?	D1				
2. Are you aware of any underground tanks that have been removed or filled?	D2				

(E) **Dumping.** Has any portion of the Property been used for waste or refuse disposal or storage? E

If "yes," location: _____

(F) **Other**

		Yes	No	Unk	N/A
1. Are you aware of any past or present hazardous substances on the Property (structure or soil) such as, but not limited to, asbestos or polychlorinated biphenyls (PCBs)?	F1				
2. Are you aware of any other hazardous substances or environmental concerns that may affect the Property?	F2				
3. If "yes," have you received written notice regarding such concerns?	F3				
4. Are you aware of testing on the Property for any other hazardous substances or environmental concerns?	F4				

Explain any "yes" answers in Section 21. Include test results and the location of the hazardous substance(s) or environmental issue(s): _____

22. MISCELLANEOUS

(A) **Deeds, Restrictions and Title**

		Yes	No	Unk	N/A
1. Are there any deed restrictions or restrictive covenants that apply to the Property?	A1				
2. Are you aware of any historic preservation restriction or ordinance or archeological designation associated with the Property?	A2				

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Check yes, no, unknown (unk) or not applicable (N/A) for each question. Be sure to check N/A when a question does not apply to the Property. Check unknown when the question does apply to the Property but you are not sure of the answer. All questions must be answered.

	Yes	No	Unk	N/A
3. Are you aware of any reason, including a defect in title or contractual obligation such as an option or right of first refusal, that would prevent you from giving a warranty deed or conveying title to the Property? A3				
(B) **Financial**				
1. Are you aware of any public improvement, condominium or homeowner association assessments against the Property that remain unpaid or of any violations of zoning, housing, building, safety or fire ordinances or other use restriction ordinances that remain uncorrected? B1				
2. Are you aware of any mortgages, judgments, encumbrances, liens, overdue payments on a support obligation, or other debts against this Property or Seller that cannot be satisfied by the proceeds of this sale? B2				
3. Are you aware of any insurance claims filed relating to the Property during your ownership? B3				
(C) **Legal**				
1. Are you aware of any violations of federal, state, or local laws or regulations relating to this Property? C1				
2. Are you aware of any existing or threatened legal action affecting the Property? C2				
(D) **Additional Material Defects**				
1. Are you aware of any material defects to the Property, dwelling, or fixtures which are not disclosed elsewhere on this form? D1				

Note to Buyer: *A material defect is a problem with a residential real property or any portion of it that would have a significant adverse impact on the value of the property or that involves an unreasonable risk to people on the property. The fact that a structural element, system or subsystem is at or beyond the end of the normal useful life of such a structural element, system or subsystem is not by itself a material defect.*

2. **After completing this form, if Seller becomes aware of additional information about the Property, including through inspection reports from a buyer, the Seller must update the Seller's Property Disclosure Statement and/or attach the inspection report(s).** These inspection reports are for informational purposes only.

Explain any "yes" answers in Section 22: _____

_____

23. ATTACHMENTS

(A) **The following are part of this Disclosure if checked:**

☐ Seller's Property Disclosure Statement Addendum (PAR Form SDA)

☐ _____

☐ _____

☐ _____

The undersigned Seller represents that the information set forth in this disclosure statement is accurate and complete to the best of Seller's knowledge. Seller hereby authorizes the Listing Broker to provide this information to prospective buyers of the property and to other real estate licensees. SELLER ALONE IS RESPONSIBLE FOR THE ACCURACY OF THE INFORMATION CONTAINED IN THIS STATEMENT. If any information supplied on this form becomes inaccurate following completion of this form, Seller shall notify Buyer in writing.

SELLER _____ **DATE** _____

SELLER _____ **DATE** _____

SELLER _____ **DATE** _____

SELLER _____ **DATE** _____

SELLER _____ **DATE** _____

SELLER _____ **DATE** _____

RECEIPT AND ACKNOWLEDGEMENT BY BUYER

The undersigned Buyer acknowledges receipt of this Statement. Buyer acknowledges that this Statement is not a warranty and that, unless stated otherwise in the sales contract, Buyer is purchasing this property in its present condition. It is Buyer's responsibility to satisfy himself or herself as to the condition of the property. Buyer may request that the property be inspected, at Buyer's expense and by qualified professionals, to determine the condition of the structure or its components.

BUYER _____ **DATE** _____

BUYER _____ **DATE** _____

BUYER _____ **DATE** _____

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